

CHAPTER 21.

An Act to amend the Markets and Fairs (Weighing of Cattle) Acts, 1887 and 1891.

[15th July 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Disclosure
of weight of
fat cattle
on sale by
auction.

1.—(1) Subject to the provisions of this Act an auctioneer shall not offer for sale in any market, fair, or mart, in or near which a weighing machine is provided for the purpose of complying with the provisions of the principal Acts, any cattle which are fit for immediate slaughter unless they have been weighed on the weighing machine and their weight as so ascertained is disclosed to intending purchasers at the time of the offer for sale, either by announcement made by the auctioneer or in some other manner calculated to bring it to their notice.

(2) Any auctioneer who offers for sale any cattle in contravention of this section shall be liable on summary conviction to a fine not exceeding forty shillings for each head of cattle so offered for sale.

(3) In this section the expression “cattle” means bulls, cows, oxen and heifers.

(4) The Minister may by order declare that the foregoing provisions of this Act shall not apply as respects any market, fair or mart.

Extension
of powers
of Minister
to grant
exemption
from pro-
visions of
principal
Acts.
50 & 51
Vict. c. 27.
54 & 55
Vict. c. 70.

2. So much of section nine of the Act of 1887 as prevents the Minister from making an order under that section on any ground except that the sale of cattle at a market or fair is, or is likely to be, so small as to render it inexpedient to enforce the provision and maintenance of a place for weighing cattle and of a weighing machine under that Act, shall cease to have effect, and the power of the Minister under the said section to exempt any market or fair from the requirements of that Act as to the provision and maintenance of facilities for weighing cattle, and the power of the Minister under section four of the Act of 1891 to exempt an auctioneer

from the requirements of that section in respect of the sale of cattle at a mart, may be exercised respectively with respect to any market or fair and with respect to any auctioneer where the circumstances are in the opinion of the Minister such as to render the enforcement of those requirements inexpedient.

3. The Act of 1887 shall have effect as if for the Schedule to that Act (which prescribes tolls which may be demanded in respect of the weighing of cattle) there were substituted the Schedule to this Act.

Tolls for weighing cattle.

4.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say:—

Interpretation, short title, commencement, citation and extent.

“The Minister” means, as respects England and Wales, the Minister of Agriculture and Fisheries, and as respects Scotland, the Board of Agriculture for Scotland.

“The Act of 1887” means the Markets and Fairs (Weighing of Cattle) Act, 1887.

“The Act of 1891” means the Markets and Fairs (Weighing of Cattle) Act, 1891.

“The Principal Acts” means the Markets and Fairs (Weighing of Cattle) Acts, 1887 and 1891.

(2) This Act may be cited as the Markets and Fairs (Weighing of Cattle) Act, 1926, and shall come into operation on the first day of January, nineteen hundred and twenty-seven; and this Act and the principal Acts may be cited together as the Markets and Fairs (Weighing of Cattle) Acts, 1887 to 1926.

(3) This Act shall not apply to Northern Ireland.

S C H E D U L E.

For every head of cattle other than sheep or swine. Not exceeding six-pence.

For every five or less number of sheep or swine. Threepence.